

18STCV06655 18STCV06655

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-03

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Case Number: 18STCV06655 Hearing Date: August 3, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

AEG PResents Productions,
LLC

;

Plaintiff,

vs.

Danny Wimmer Presents, LLC

;

Defendant.

Case No.:

18STCV06655

Hearing Date:

August 3, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Plaintiff's

Motion for Issue and Evidentiary Sanctions

MOVING PARTY: Plaintiff AEG Presents Productions,
LLC

RESPONDING

PARTY: Defendant Danny Wimmer Presents,
LLC

Motion for Issue
and Evidentiary Sanctions

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

DISCUSSION

Plaintiff AEG

Presents Productions, LLC ("Plaintiff") moves the court for an order awarding issue and evidentiary sanctions for Plaintiff and against defendant Danny Wimmer Presents, LLC ("Defendant") for failure to comply with the court's December 18, 2025 order to provide further responses to Plaintiff's Requests for Production Nos. 252 and 253.

The court denies
the motion because Plaintiff has not demonstrated that Defendant has engaged in conduct that is a misuse of the discovery process by disobeying a court order to provide discovery. (Code Civ. Proc.
§ 2023.010 subd. (g).)

On December 18, 2025, the court issued an order on Plaintiff's motion to compel further responses to requests for production which, as relevant here, granted the motion as to requests for production numbers 252 and 253. (Order filed December 18, 2025.) That ruling was subject to three conditions: "(1) Defendant's identifying deposition transcripts or portions thereof, and responses to interrogatories or requests for admission or portions thereof, that are subject to a protective order entered in the Davis Shapiro action, (2) Plaintiff's obtaining an order from the court in that action allowing for the production of those documents pursuant to this order, and (3) Defendant's right to assert the attorney-client privilege as to those materials and providing a privilege log concerning any such materials as to which Defendant asserts the attorney-client privilege pursuant to Code of Civil Procedure section 2031.240. (Ibid.)

Plaintiff

contends that Defendant violated this order by not identifying materials subject to a protective order and instead asserting blanket privilege objections. Defendant maintains that all of the materials sought are subject to the attorney-client privilege. Whether or not Defendant's objection has merit, the court expressly permitted Defendant to assert the attorney-client privilege contingent on the provision of a privilege log. Defendant provided that privilege log on May 20, 2026. (Jorrie Decl. ¶ 19, Exs. 13-14.) Although Plaintiff plainly disputes the merits of Defendant's privilege claim and the sufficiency of the privilege log, that dispute does not transform Defendant's conduct into disobedience of the court's order. (Code Civ. Proc. § 2023.010 subd. (g).) Other remedies are available if Plaintiff seeks to challenge Defendant's assertion of attorney-client privilege.

ORDER

The

court DENIES plaintiff AEG Presents Productions, LLC's motion for sanctions.

The court orders defendant

Danny Wimmer Presents, LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 3, 2026

Robert B. Broadbelt III

Judge of the Superior Court